



Bill Number: H.B. 2594

Finchem Floor Amendment

Reference to: FEDERALISM AND FAMILY LAW

Committee Amendment

Amendment drafted by: Leg. Council

FLOOR AMENDMENT EXPLANATION

- Makes technical changes.

FINCHEM FLOOR AMENDMENT
SENATE AMENDMENTS TO H.B. 2594
(Reference to FEDERALISM AND FAMILY LAW Committee amendment)

Amendment instruction key:

[GREEN UPPERCASE UNDERLINING IN BRACKETS] indicates that the amendment is adding text to statute

or previously enacted session law.

[Green lowercase underlining in brackets] indicates that the amendment is adding text to new session law or is restoring previously stricken text to existing statute.

~~[GREEN UPPERCASE STRIKEOUT IN BRACKETS]~~ indicates that the amendment is removing new text from statute or previously enacted session law.

~~[Green lowercase strikeout in brackets]~~ indicates that the amendment is removing text from existing statute, previously enacted session law or new session law.

<<Double green carets enclosing an entire section>> indicates that the amendment is adding the section to the bill.

~~<<Green strikeout with double green carets enclosing an entire section>>~~ indicates that the amendment is removing the section to the bill.

{{ORANGE UPPERCASE UNDERLINING IN DOUBLE CURLY BRACKETS}} indicates that the amendment to an amendment is adding text to statute or previously enacted session law.

{{Orange lowercase underlining in double curly brackets}} indicates that the amendment to an amendment is adding text to new session law or is restoring previously stricken text to existing statute.

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~~≤≤Orange strikeout with double orange underlined carets enclosing an entire section≥≥~~ indicates that the amendment to an amendment is removing the section from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 <<Section 1. Section 16-153, Arizona Revised Statutes, is amended
3 to read:

4 16-153. Voter registration; confidentiality; definitions

5 A. Eligible persons, and any other registered voter who resides at
6 the same residence address as the eligible person, may request that the
7 general public be prohibited from accessing the eligible person's
8 identifying information, including any of the following:

9 1. That person's documents and voting precinct number contained in
10 that person's voter registration record.

11 2. If the person is a public official, the address of a property
12 held in trust by the public official.

13 B. Eligible persons may request this action by filing an affidavit
14 that states all of the following on an application form developed by the
15 administrative office of the courts in agreement with an association of
16 counties and an organization of peace officers:

1 1. The person's full legal name, residential address and date of
2 birth.

3 2. Unless the person is the spouse of a peace officer or the spouse
4 or minor child of a deceased peace officer or the person is a former
5 public official or former judge, the position the person currently holds
6 and a description of the person's duties, except that an eligible person
7 who is protected under an order of protection or injunction against
8 harassment shall instead attach a copy of the order of protection or
9 injunction against harassment.

10 3. The reasons for reasonably believing that the person's life or
11 safety or that of another person is in danger and that sealing the
12 identifying information and voting precinct number of the person's voting
13 record will serve to reduce the danger.

14 C. The affidavit shall be filed with the presiding judge of the
15 superior court in the county in which the affiant resides. To prevent
16 multiple filings, an eligible person who is a peace officer, prosecutor,
17 public defender, code enforcement officer, corrections or detention
18 officer, corrections support staff member or law enforcement support staff
19 member shall deliver the affidavit to the peace officer's commanding
20 officer, or to the head of the prosecuting, public defender, code
21 enforcement, law enforcement, corrections or detention agency, as
22 applicable, or that person's designee, who shall file the affidavits at
23 one time. In the absence of an affidavit that contains a request for
24 immediate action and is supported by facts justifying an earlier
25 presentation, the commanding officer, or the head of the prosecuting,
26 public defender, code enforcement, law enforcement, corrections or
27 detention agency, as applicable, or that person's designee, shall not file
28 affidavits more often than quarterly.

29 D. On receipt of an affidavit or affidavits, the presiding judge of
30 the superior court shall file with the clerk of the superior court a
31 petition on behalf of all requesting affiants. The petition shall have
32 attached each affidavit presented. In the absence of an affidavit that
33 contains a request for immediate action and that is supported by facts
34 justifying an earlier consideration, the presiding judge may accumulate
35 affidavits and file a petition at the end of each quarter.

36 E. The presiding judge of the superior court shall review the
37 petition and each attached affidavit to determine whether the action
38 requested by each affiant should be granted. The presiding judge of the
39 superior court shall order the sealing for five years of the information
40 contained in the voter record of the affiant and, on request, any other
41 registered voter who resides at the same residence address if the
42 presiding judge concludes that this action will reduce a danger to the
43 life or safety of the affiant.

44 F. The recorder shall remove the restrictions on all voter records
45 submitted pursuant to subsection E of this section by January 5 in the
46 year after the court order expires. The county recorder shall send by
47 mail one notice to either the health professional, election officer,
48 public official, former public official, peace officer, spouse of a peace
49 officer, spouse or minor child of a deceased peace officer, public

1 defender, prosecutor, code enforcement officer, corrections or detention
2 officer, corrections support staff member, law enforcement support staff
3 member, employee of the department of child safety or employee of adult
4 protective services who has direct contact with families in the course of
5 employment or the employing agency of the peace officer, public defender,
6 prosecutor, code enforcement officer, corrections or detention officer,
7 corrections support staff member or law enforcement support staff member
8 who was granted an order pursuant to this section of the order's
9 expiration date at least six months before the January 5 removal date. If
10 the notice is sent to the employing agency, the employing agency shall
11 immediately notify the person who was granted the order of the upcoming
12 expiration date. The county recorder may coordinate with the county
13 assessor and county treasurer to prevent multiple notices from being sent
14 to the same person.

15 G. On entry of the court order, the clerk of the superior court
16 shall file the court order with the county recorder. On receipt of the
17 court order the county recorder shall seal the voter registration of the
18 persons listed in the court order not later than one hundred twenty days
19 from the date of receipt of the court order. To include a subsequent
20 voter registration in the court order, a person listed in the court order
21 shall present to the county recorder at the time of registration a
22 certified copy of the court order or shall provide the county recorder the
23 recording number of the court order. The information in the registration
24 shall not be disclosed and is not a public record.

25 H. If the court denies an affiant's requested sealing of the voter
26 registration record, the affiant may request a court hearing. The hearing
27 shall be conducted by the court where the petition was filed.

28 I. On motion to the court, if the presiding judge of the superior
29 court concludes that a voter registration record has been sealed in error
30 or that the cause for the original affidavit no longer exists, the
31 presiding judge may vacate the court order prohibiting public access to
32 the voter registration record.

33 J. On request by a person who is protected under an order of
34 protection or injunction against harassment and presentation of an order
35 of protection issued pursuant to section 13-3602, an injunction against
36 harassment issued pursuant to section 12-1809 or an order of protection or
37 injunction against harassment issued by a court in another state or a
38 program participant in the address confidentiality program pursuant to
39 title 41, chapter 1, article 3, the county recorder shall seal the voter
40 registration record of the person who is protected and, on request, any
41 other registered voter who resides at the residence address of the
42 protected person. The record shall be sealed not later than one hundred
43 twenty days from the date of receipt of the court order. The information
44 in the registration shall not be disclosed and is not a public
45 record. [ON THE RENEWAL OF THE CERTIFICATION OF A PROGRAM PARTICIPANT IN
46 THE ADDRESS CONFIDENTIALITY PROGRAM PURSUANT TO TITLE 41, CHAPTER 1,
47 ARTICLE 3, THE COUNTY RECORDER SHALL CONTINUE OR RENEW THE SEALING OF THE
48 VOTER REGISTRATION RECORD OF THE PERSON WHO IS PROTECTED AND{(.)} ON
49 REQUEST ANY {{OTHER}} HOUSEHOLD {{RESIDENTS THAT WERE}} {{RESIDENT WHO

1 IS}} CERTIFIED AS {{A}} PROGRAM {{PARTICIPANTS}} {{PARTICIPANT}} PURSUANT
2 TO SECTION 41-163, SUBSECTION D {{THAT-ARE}} {{AND WHO IS A}} REGISTERED
3 {{VOTERS}} {{VOTER}}. THE VOTER REGISTRATION RECORD OF A PROGRAM
4 PARTICIPANT IN THE ADDRESS CONFIDENTIALITY PROGRAM PURSUANT TO TITLE 41,
5 CHAPTER 1, ARTICLE 3 SHALL REMAIN SEALED AFTER THE DEATH OF THE PROGRAM
6 PARTICIPANT.]

7 K. For the purposes of this section:

8 1. "Code enforcement officer" means a person who is employed by a
9 state or local government and whose duties include performing field
10 inspections of buildings, structures or property to ensure compliance with
11 and enforce national, state and local laws, ordinances and codes.

12 2. "Commissioner" means a commissioner of the superior court or
13 municipal court.

14 3. "Corrections support staff member" means an adult or juvenile
15 corrections employee who has direct contact with inmates.

16 4. "Election officer" means a state, county or municipal employee
17 who holds an election officer's certificate issued pursuant to section
18 16-407.

19 5. "Eligible person" means a health professional, election officer,
20 public official, former public official, peace officer, spouse of a peace
21 officer, spouse or minor child of a deceased peace officer, justice,
22 judge, commissioner, hearing officer, public defender, prosecutor, member
23 of the commission on appellate court appointments, code enforcement
24 officer, adult or juvenile corrections officer, corrections support staff
25 member, probation officer, member of the board of executive clemency, law
26 enforcement support staff member, employee of the department of child
27 safety or employee of adult protective services who has direct contact
28 with families in the course of employment, national guard member who is
29 acting in support of a law enforcement agency, person who is protected
30 under an order of protection or injunction against harassment or
31 firefighter who is assigned to the Arizona counter terrorism information
32 center in the department of public safety.

33 6. "Former public official" means a person who was duly elected or
34 appointed to Congress, the legislature or a statewide office, who ceased
35 serving in that capacity and who was the victim of a dangerous offense as
36 defined in section 13-105 while in office.

37 7. "Health professional" means an individual who is licensed
38 pursuant to title 32, chapter 13, 15, 17, 19.1, 25 or 33.

39 8. "Hearing officer" means a hearing officer who is appointed
40 pursuant to section 28-1553.

41 9. "Judge" means a judge or former judge of the United States
42 district court, the United States court of appeals, the United States
43 magistrate court, the United States bankruptcy court, the United States
44 immigration court, the Arizona court of appeals, the superior court or a
45 municipal court.

46 10. "Justice" means a justice of the United States or Arizona
47 supreme court or a justice of the peace.

48 11. "Law enforcement support staff member" means a person who
49 serves in the role of an investigator or prosecutorial assistant in an

1 agency that investigates or prosecutes crimes, who is integral to the
2 investigation or prosecution of crimes and whose name or identity will be
3 revealed in the course of public proceedings.

4 12. "Peace officer":

5 (a) Has the same meaning prescribed in section 1-215.

6 (b) Includes a federal law enforcement officer or agent who resides
7 in this state and who has the power to make arrests pursuant to federal
8 law.

9 13. "Prosecutor" means a current or former United States attorney,
10 county attorney, municipal prosecutor or attorney general and includes a
11 current or former assistant or deputy United States attorney, county
12 attorney, municipal prosecutor or attorney general.

13 14. "Public defender" means a federal public defender, county
14 public defender, county legal defender or county contract indigent defense
15 counsel and includes an assistant or deputy federal public defender,
16 county public defender or county legal defender.

17 15. "Public official" means a person who is duly elected or
18 appointed to Congress, the legislature, a statewide office or a county,
19 city or town office.>>

20 Sec. 2. Section 25-403.06, Arizona Revised Statutes, is amended to
21 read:

22 25-403.06. Parental access to prescription medication and
23 records; address confidentiality program;
24 applicability

25 A. Unless otherwise provided by court order or law, on reasonable
26 request both parents are entitled to have equal access to prescription
27 medication, documents and other information concerning the child's
28 education and physical, mental, moral and emotional health, including
29 medical, school, police, court and other records, directly from the
30 custodian of the records or from the other parent.

31 B. A person who does not comply with a reasonable request shall
32 reimburse the requesting parent for court costs and attorney fees incurred
33 by that parent to force compliance with this section.

34 C. A parent with joint legal custody shall not designate one
35 pharmacy in a single location as the only source of the child's
36 prescription medication without THE agreement of the other parent.

37 D. A parent who attempts to restrict the release of documents or
38 information by the custodian or attempts to withhold prescription
39 medication without a prior court order is subject to appropriate legal
40 sanctions.

41 E. IF A PARENT HAS SOLE LEGAL DECISION-MAKING AUTHORITY AND THAT
42 PARENT IS A PARTICIPANT IN THE ADDRESS CONFIDENTIALITY PROGRAM ESTABLISHED
43 PURSUANT TO SECTION 41-162 BECAUSE OF THE ACTIONS OF THE OTHER PARENT,
44 SUBSECTION A OF THIS SECTION DOES NOT APPLY TO THE PARENT WHO DOES NOT
45 HAVE SOLE LEGAL DECISION-MAKING AUTHORITY. THE PARENT WITH LEGAL
46 DECISION-MAKING AUTHORITY WHO IS A PARTICIPANT IN THE ADDRESS
47 CONFIDENTIALITY PROGRAM MAY PROVIDE THE INFORMATION REQUIRED PURSUANT TO
48 THIS SUBSECTION BY EMAIL, CELL PHONE APPLICATION OR REGULAR MAIL.

1 Sec. 3. Title 25, chapter 11, article 1, Arizona Revised Statutes,
2 is amended by adding section 25-1502, to read:

3 25-1502. Participants in address confidentiality program; use
4 of substitute address; applicability; violations;
5 classification

6 A. IN ANY MATTER BROUGHT PURSUANT TO THIS TITLE, IF A PARTY TO THE
7 MATTER IS A PARTICIPANT IN THE ADDRESS CONFIDENTIALITY PROGRAM ESTABLISHED
8 PURSUANT TO SECTION 41-162, THE COURT SHALL USE THE PARTY'S ADDRESS
9 CONFIDENTIALITY PROGRAM SUBSTITUTE ADDRESS IN ALL FILINGS, NOTICES AND
10 COMMUNICATIONS RELATING TO THE MATTER.

11 B. AN ADDRESS CONFIDENTIALITY PROGRAM PARTICIPANT'S RESIDENCE
12 ADDRESS SHALL BE SEALED IN ALL COURT RECORDS AND MAY NOT BE DISCLOSED TO
13 ANY PARTY OR ATTORNEY.

14 C. THE PARTY WHO IS A PARTICIPANT IN THE ADDRESS CONFIDENTIALITY
15 PROGRAM MAY RECEIVE SERVICE AS PRESCRIBED IN SECTION 41-162, SUBSECTION C.

16 D. THE COURT MAY NOT CONSIDER A PARTY'S PARTICIPATION IN THE
17 ADDRESS CONFIDENTIALITY PROGRAM AS EVIDENCE OF ANY OF THE FOLLOWING:

- 18 1. PARENTAL ALIENATION.
- 19 2. FAILURE TO COOPERATE WITH THE OTHER PARTY.
- 20 3. INSTABILITY.

21 E. ANY PERSON WHO INTENTIONALLY OR KNOWINGLY OBTAINS OR DISCLOSES
22 INFORMATION IN VIOLATION OF THIS SECTION OR SECTION 41-165 IS GUILTY OF A
23 CLASS 1 MISDEMEANOR.

24 ~~{{E.}}~~ ANY PERSON WHO INTENTIONALLY OR KNOWINGLY OBTAINS OR
25 DISCLOSES INFORMATION IN VIOLATION OF THIS SECTION OR SECTION 41-165 FOR
26 THE PURPOSE OF HARASSMENT, STALKING OR DOMESTIC VIOLENCE AGAINST A PARTY
27 TO A MATTER THAT IS BROUGHT PURSUANT TO THIS TITLE IS GUILTY OF A CLASS 6
28 FELONY.

29 Sec. 4. Section 41-162, Arizona Revised Statutes, is amended to
30 read:

31 41-162. Address confidentiality program; duties of secretary
32 of state; substitute address; application
33 assistants

34 A. ~~On or before December 31, 2012,~~ The secretary of state shall
35 establish the address confidentiality program to allow persons who have
36 been subjected to domestic violence offenses, sexual offenses or stalking
37 to keep their residence addresses confidential and not accessible to the
38 general public. Participants in the program shall receive a substitute
39 address that becomes the participant's lawful address of record.

40 B. The secretary of state shall:

41 1. Designate a substitute address for a program participant that is
42 used by state and local government entities as set forth in this section.

43 2. Receive mail sent to a program participant at a substitute
44 address and forward the mail to the program participant as set forth in
45 paragraph 3 of this subsection.

46 3. Receive first-class, certified or registered mail on behalf of a
47 program participant and forward the mail to the program participant for no
48 charge. The secretary of state may arrange to receive and forward other
49 classes or kinds of mail at the program participant's expense. The

1 secretary of state is not required to track or otherwise maintain records
2 of any mail received on behalf of a program participant unless the mail is
3 certified or registered mail.

4 C. Notwithstanding any other law and except as provided by court
5 rule, a program participant may be served by registered mail or by
6 certified mail, return receipt requested, addressed to the program
7 participant at the program participant's substitute address with any
8 process, notice or demand required or allowed by law to be served on the
9 program participant. This subsection does not prescribe the only means,
10 or necessarily the required means, of serving a program participant in
11 this state.

12 D. A COURT MAY NOT ORDER THE DISCLOSURE OF A PROGRAM PARTICIPANT'S
13 RESIDENCE ADDRESS OR LOCATION INFORMATION UNLESS THE COURT FINDS, BY CLEAR
14 AND CONVINCING EVIDENCE, THAT DISCLOSURE OF A PROGRAM PARTICIPANT'S
15 RESIDENCE ADDRESS IS ESSENTIAL TO A COMPELLING STATE INTEREST AND THAT NO
16 REASONABLE ALTERNATIVE EXISTS TO ACCOMPLISH THAT PURPOSE WITHOUT THE
17 DISCLOSURE OF THE PROGRAM PARTICIPANT'S RESIDENCE ADDRESS.

18 ~~D.~~ E. The secretary of state may designate as an application
19 assistant any person who:

20 1. Provides counseling, referral or other services to victims of
21 domestic violence, a sexual offense or stalking.

22 2. Completes any training and registration process required by the
23 secretary of state.

24 ~~F.~~ F. Any assistance and counseling rendered by the secretary of
25 state or an application assistant to an applicant related to this section
26 is not legal advice.

27 Sec. 5. Section 41-165, Arizona Revised Statutes, is amended to
28 read:

29 41-165. Disclosure of actual address prohibited; exceptions;
30 violations; classification

31 A. The secretary of state shall not disclose any address or
32 telephone number of a program participant other than the substitute
33 address designated by the secretary of state, except under any of the
34 following circumstances:

35 1. The information is required by direction of a court order.
36 ~~, except that~~ Any person to whom a program participant's address or
37 telephone number ~~has been~~ IS disclosed PURSUANT TO THIS PARAGRAPH shall
38 not disclose the address or telephone number to any other person unless
39 ~~permitted~~ ALLOWED to do so by order of the court or as otherwise provided
40 by law.

41 2. The secretary of state grants a request by a state or local
42 government entity pursuant to section 41-167, subsection D.

43 B. The secretary of state shall provide immediate notification of
44 disclosure to a program participant if disclosure is made pursuant to
45 subsection A of this section.

46 C. If, at the time of application, an applicant or an individual
47 identified pursuant to section 41-163, subsection C, paragraph 10 is
48 subject to a court order related to dissolution of marriage proceedings,
49 child support or the allocation of parental responsibilities or parenting

1 time, the secretary of state shall notify the court that issued the order
2 of the certification of the program participant in the address
3 confidentiality program and the substitute address designated by the
4 secretary of state. If, at the time of application, an applicant or an
5 individual identified pursuant to section 41-163, subsection C, paragraph
6 10 is involved in a court action related to dissolution of marriage
7 proceedings, child support or the allocation of parental responsibilities
8 or parenting time, the secretary of state shall notify the court having
9 jurisdiction over the action of the certification of the applicant in the
10 address confidentiality program and the substitute address designated by
11 the secretary of state.

12 D. A person shall not intentionally or knowingly obtain OR ATTEMPT
13 TO OBTAIN a program participant's actual address or telephone number,
14 WHETHER from the secretary of state or a state or local government entity,
15 OR BY ANY OTHER MEANS, knowing that the person is not authorized to obtain
16 the address information.

17 E. An employee of the secretary of state or a state or local
18 government entity shall not intentionally or knowingly disclose a program
19 participant's actual address or telephone number unless the disclosure is
20 permissible by law. This subsection ~~only~~ applies ONLY if an employee
21 obtains a program participant's actual address or telephone number during
22 the course of the employee's official duties and, at the time of
23 disclosure, the employee has specific knowledge that the actual address or
24 telephone number disclosed belongs to a program participant.

25 F. Any person who intentionally or knowingly obtains OR ATTEMPTS TO
26 OBTAIN or discloses information in violation of this section is guilty of
27 a class 1 misdemeanor.

28 ~~[[G.]]~~ ANY PERSON WHO INTENTIONALLY OR KNOWINGLY OBTAINS OR
29 ATTEMPTS TO OBTAIN OR DISCLOSES INFORMATION IN VIOLATION OF THIS SECTION
30 FOR THE PURPOSE OF HARASSMENT, STALKING OR DOMESTIC VIOLENCE AGAINST A
31 PARTY TO A MATTER THAT IS BROUGHT PURSUANT TO TITLE 25 IS GUILTY OF A
32 CLASS 6 FELONY. IF THE CONDUCT INVOLVES SURVEILLANCE OF A MINOR, USE OF A
33 THIRD PARTY OR REPEATED ATTEMPTS, THE PERSON IS GUILTY OF A CLASS 5
34 FELONY.

35 <<Sec. 6. Section 41-166, Arizona Revised Statutes, is amended to
36 read:

37 41-166. Program participants; substitute address; use by
38 state or local government entities

39 A. The program participant, and not the secretary of state, is
40 responsible for requesting that a state or local government entity use the
41 program participant's substitute address as the program participant's
42 residential, work or school address for all purposes for which the state
43 or local government entity requires or requests the residential, work or
44 school address.

45 B. Except as otherwise provided in this section or unless the
46 secretary of state grants a state or local government entity's request for
47 disclosure pursuant to section 41-167, if a program participant submits a
48 current and valid address confidentiality program authorization card to
49 the state or local government entity, the state or local government entity

1 shall accept the substitute address designation on the card as the program
2 participant's address for use as the program participant's residential,
3 work or school address when creating a new public record. The substitute
4 address given to the state or local government entity is considered the
5 last known address for the program participant used by the state or local
6 government entity until the time that the state or local government entity
7 receives notification pursuant to section 41-164. The state or local
8 government entity may make a photocopy of the card for the records of the
9 state or local government entity and shall immediately return the card to
10 the program participant.

11 C. Except as otherwise provided in this section or by order of the
12 court, if a program participant submits a current and valid address
13 confidentiality program authorization card to the court, the court shall
14 accept the substitute address designation on the card as the program
15 participant's address for use as the program participant's residential,
16 work or school address. The substitute address given to the court is
17 considered the last known address for the program participant used by the
18 court until the time that the court receives notification pursuant to
19 section 41-164. The court may make a photocopy of the card for the court
20 file and shall return the card to the program participant.

21 D. When a person with an existing voter registration record becomes
22 a program participant, the secretary of state shall secure the {{PROGRAM}}
23 participant's voter registration record and notify the appropriate county
24 recorder of the {{PROGRAM}} participant's secured status, current
25 residence address and substitute address for the county recorder to revise
26 the {{PROGRAM}} participant's voter registration record so that the
27 {{PROGRAM}} participant's address can be kept confidential in the same
28 manner as prescribed by section 16-153. A program participant who is not
29 already registered to vote may register to vote using the substitute
30 address and must provide the election official with the {{PROGRAM}}
31 participant's actual residence address for precinct designation
32 purposes. If the {{PROGRAM}} participant registers to vote other than
33 online or at a driver license examination facility, the {{PROGRAM}}
34 participant shall present a completed voter registration form with the
35 {{PROGRAM}} participant's substitute address and address confidentiality
36 program {{AUTHORIZATION}} card to the appropriate election official. [ON
37 THE RENEWAL OF THE CERTIFICATION OF A PROGRAM PARTICIPANT IN THE ADDRESS
38 CONFIDENTIALITY PROGRAM, THE COUNTY RECORDER SHALL CONTINUE OR RENEW THE
39 SEALING OF THE VOTER REGISTRATION RECORD OF THE PERSON WHO IS PROTECTED
40 AND, ON REQUEST, ANY OTHER REGISTERED VOTER WHO RESIDES AT THE RESIDENCE
41 ADDRESS OF THE PROTECTED PERSON. THE VOTER REGISTRATION RECORD OF A
42 PROGRAM PARTICIPANT IN THE ADDRESS CONFIDENTIALITY PROGRAM SHALL REMAIN
43 SEALED AFTER THE DEATH OF THE PROGRAM PARTICIPANT.]

44 E. A designated election official shall use the actual address of a
45 program participant for precinct designation and all official
46 election-related purposes and shall keep the program participant's actual
47 address confidential from the public. The election official shall use the
48 substitute address for all correspondence and mailings placed in the

1 United States mail. The substitute address shall not be used as an actual
2 residence address for voter registration.

3 F. A state or local government entity's access to a program
4 participant's voter registration shall be governed by the disclosure
5 process set forth in section 41-167.

6 G. A program participant who completes an application to register
7 to vote at a driver license examination facility while receiving a driver
8 license or an identification card is required to have the program
9 participant's actual address on the driver license or identification card.
10 A program participant whose driver license has the substitute address may
11 register to vote, if otherwise eligible, pursuant to subsection ~~{{E}}~~
12 ~~{{D}}~~ of this section.

13 H. The substitute address shall not be used for purposes of
14 listing, appraising or assessing property taxes and collecting property
15 taxes. If a program participant would like to keep records maintained by
16 the county assessor and county treasurer confidential, the program
17 participant shall comply with section 11-484.

18 I. If a program participant is required by law to swear or affirm
19 to the program participant's address, the program participant may use the
20 ~~{{PROGRAM}}~~ participant's substitute address.

21 J. The substitute address shall not be used for purposes of
22 assessing any taxes or fees on a motor vehicle or for titling or
23 registering a motor vehicle. Notwithstanding any law to the contrary, any
24 record that includes a program participant's actual address pursuant to
25 this subsection shall be confidential and not available for inspection by
26 anyone other than the program participant.

27 K. The substitute address shall not be used on any document related
28 to real property recorded with a recorder. If a program participant would
29 like to keep real property records confidential, the program participant
30 shall comply with section 11-483.

31 L. A public school shall accept the substitute address as the
32 ~~{{PROGRAM PARTICIPANT'S}}~~ address of record and shall verify student
33 enrollment eligibility through the secretary of state. The secretary of
34 state shall facilitate the transfer of student records from one school to
35 another.

36 M. Except as otherwise provided in this section, a program
37 participant's actual address and telephone number maintained by a state or
38 local government entity or disclosed by the secretary of state is not a
39 public record that is subject to inspection. This subsection ~~{{strat}}~~
40 ~~{{DOES}}~~ not apply to the following:

41 1. Any public record created more than ninety days before the date
42 that the program participant applied to be certified in the ~~{{ADDRESS~~
43 ~~CONFIDENTIALITY}}~~ program.

44 2. A program participant who voluntarily requests that a state or
45 local government entity use the ~~{{PROGRAM}}~~ participant's actual address
46 or voluntarily gives the actual address to the state or local government
47 entity.

48 N. For any public record created within ninety days before the date
49 that a program participant applied to be certified in the ~~{{ADDRESS~~

1 CONFIDENTIALITY}} program, a state or local government entity shall redact
2 the actual address from a public record or change the actual address to
3 the substitute address in the public record, if a program participant who
4 presents a current and valid {{ADDRESS CONFIDENTIALITY}} program
5 authorization card requests the entity that maintains the public record to
6 use the substitute address instead of the actual address on the public
7 record.>>

8 Enroll and engross to conform
9 Amend title to conform

MARK FINCHEM

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